

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/15/26 TIME: 1:30 P.M. DEPT: A CASE NO: CIV2102919

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: SHIYING JIN, ET AL vs. DEFENDANT: BUCK INSTITUTE FOR RESEARCH ON AGING	
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NATURE OF PROCEEDINGS: MOTION – SUMMARY ADJUDICATION

RULING

The Motion of Plaintiffs Lei Lei and Shiyang Jin’s (“Plaintiffs”) for Summary Adjudication of Buck Institute for Research on Aging’s (Defendant Buck”) 18th Affirmative Defense in the Answer to the Original Complaint and Defendant Buck and defendant Eric Verdin’s (“Defendant Verdin”) (collectively “Defendants”) 1st Affirmative Defense in the Answer to the Second Amended Complaint is **DENIED**.

MOTION IS MOOT AS TO ANSWER TO ORIGINAL COMPLAINT

As an initial matter, it is unclear why the Motion addresses both the Answer to the Original Complaint (10/29/21) *and* the operative Answer to the Second Amended Complaint (11/28/23). Once the amended complaint was filed, that amended complaint superseded the original complaint. The Answer to that amended pleading became the operative Answer. There is therefore no need, or basis, for the Court to rule on affirmative defenses made only in the Answer to the Original Complaint and not asserted in the operative Answer. The Motion is therefore DENIED as moot as to the 18th Affirmative Defense in the Answer to the Original Complaint.

REQUEST FOR JUDICIAL NOTICE

Plaintiffs’ Request for Judicial Notice No. 1 is GRANTED. (Evid. Code, § 452, subd. (d).)

OBJECTIONS TO EVIDENCE

The Court need only rule on those objections to evidence that it deems material to its disposition of the motion. (See Code Civ. Proc., § 437c(q).)

LEGAL STANDARD

“A party may move for summary adjudication as to ... one or more affirmative defenses, ... if the party contends ... that there is no merit to an affirmative defense as to any cause of action....” (Code Civ. Proc., § 437c, subd. (f)(1).) When a plaintiff moves for summary adjudication on an affirmative defense, the court shall grant the motion “*only if it completely disposes*” of the defense. (Code Civ. Proc., § 437c, subd. (f)(1), *italics added*.)

“The plaintiff bears the initial burden to show there is no triable issue of material fact as to the defense and that he or she is entitled to judgment on the defense as a matter of law. In so doing, the plaintiff must negate an essential element of the defense or establish the defendant does not possess and cannot reasonably obtain evidence needed to support the defense.” (*See's Candy Shops, Inc. v. Superior Court* (2012) 210 Cal.App.4th 889, 899-900.) “If the plaintiff does not make this showing, ‘it is unnecessary to examine the [defendant's] opposing evidence and the motion must be denied. However, if the moving papers establish a *prima facie* showing that justifies a [ruling] in the [plaintiff's] favor, the burden then shifts to the [defendant] to make a *prima facie* showing of the existence of a triable material factual issue.’” (*Id.*, at p. 900.) “Summary adjudication is a drastic remedy and any doubts about the propriety of summary adjudication must be resolved in favor of the party opposing the motion.” (*Ibid.*)

While the statute of limitations is normally a question of fact, the question becomes one of law when the evidence is susceptible of only one reasonable conclusion. (*Filosa v. Alagappan* (2020) 59 Cal.App.5th 772, 778; *Cnty. of Santa Clara v. Atl. Richfield Co.* (2006) 137 Cal.App.4th 292, 316.)

DISCUSSION

1st Affirmative Defense – Statute of Limitations

Plaintiffs assert that the limitations statutes for their various claims provide limitations periods between one and four years. Plaintiffs acknowledge that the statutory clock began running for all causes of action except defamation on April 13, 2021, the date of Plaintiffs’ termination. (See Molineaux Decl., Ex. 21, p. 420; UMF Nos. 30, 31.) Plaintiffs contend their defamation cause of action began to run eight days later, on April 21, 2021. (*Id.*)

On April 6, 2022, Defendant Buck appealed the Court's Order Denying its Motion to Compel Arbitration and Dismiss Claims or Stay Proceedings. (UMF No. 36.) Per Code of Civil Procedure section 916, Plaintiffs argue that this appeal stayed the entire case and all matters embraced by the appeal, which Plaintiffs allege include “all claims arising from Plaintiffs’ employment.”

On May 30, 2023, the matter was remitted to this Court, the stay lifted, and the relevant limitations periods continued to run. (See Molineaux Decl., Ex. 21, p. 420; UMF No. 40.) Plaintiffs filed their First Amended Complaint on July 7, 2023, and their Second Amended Complaint on October 27, 2023. (UMF Nos. 43, 48.)

Plaintiffs assert that they filed most all causes of action in their amended complaints within the relevant limitations period, as statutorily tolled by Defendant Buck's appeal, and that the defamation cause of action was timely filed under equitable tolling principles.

For the defamation claim, Plaintiffs assert that the 1 year statute of limitations began to run on April 21, 2021. (See Molineaux Decl., Ex. 21, p. 420.) They argue that the statutory clock stopped on April 26, 2022, and restarted on May 30, 2023 with fifteen days left on it. (*Id.*; but see clarification in Reply p. 3:10-14.) Plaintiffs assert this deadline would have expired on June 14, 2023. (*Id.*) The First Amended Complaint containing the defamation cause of action was not filed until July 7, 2023, after Plaintiffs admit the statutory deadline expired. (See UMF No. 43.) Plaintiffs therefore rely on equitable tolling to avoid application of the statute of limitations Affirmative Defense as to this cause of action.

Equitable tolling is a judge-made doctrine “which operates independently of the literal wording of the Code of Civil Procedure” to suspend or extend a statute of limitations as necessary to ensure fundamental practicality and fairness. (*Lantzy v. Centex Homes* (2003) 31 Cal.4th 363, 370, *as modified* (Aug. 27, 2003).) Courts have applied equitable tolling in carefully considered situations to prevent the unjust technical forfeiture of causes of action, where the defendant would suffer no prejudice. (*Id.*) As with other general equitable principles, application of the equitable tolling doctrine requires a balancing of the injustice to the plaintiff occasioned by the bar of his claim against the effect upon the important public interest or policy expressed by the limitations statute. (*Id.*, at p. 371.) “Tolling can only suspend the running of a statute that still has time to run; it cannot revive a statute which has already run out.” (*Mills v. Forestex Co.* (2003) 108 Cal.App.4th 625, 651–52.) Equitable tolling is a question of fact. (*Transp. Ins. Co. v. TIG Ins. Co.* (2012) 202 Cal.App.4th 984, *as modified on denial of reh'g* (Feb. 2, 2012).)

As Plaintiffs note, the “application of the doctrine of equitable tolling requires timely notice, and lack of prejudice to the defendant, and reasonable good faith conduct by plaintiff.” (Memo P&A p. 20:15-17, citing *Addison v. State of California* (1978) 21 Cal.3d 313, 319.) Plaintiffs UMF only touch on the notice portion of the equation. (UMF No. 39.) There are no UMF provided which address prejudice, or lack thereof, and whether Plaintiffs’ conduct was reasonable and in good faith. Argument in Plaintiffs’ Memorandum of Points and Authorities does not excuse this omission.

Due to this failure, the Moving Papers do not sufficiently meet Plaintiffs’ burden on summary adjudication and have failed to show Plaintiffs are entitled to summary adjudication of this affirmative defense as a matter of law. (See’s *Candy Shops, Inc. v. Superior Court*, *supra*, 210 Cal.App.4th at p. 899-900.)

Contrary to Plaintiffs’ assertion, the Motion must completely dispose of an affirmative defense. (Code Civ. Proc., § 437c, subd. (f)(1).) If the affirmative defense survives summary judgment as to any cause of action, the motion for summary adjudication of that affirmative defense must be denied. Accordingly, the Court need not and does not reach the arguments surrounding the tolling of statutory deadlines while the arbitration order was on appeal.

The Motion is DENIED.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/15/26 TIME: 1:30 P.M. DEPT: A CASE NO: CIV2104334

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: MARICOPA MEADOWS
HOMEOWNERS ASSOCIATION

vs.

DEFENDANT: EDWARD L. SPENCER, ET
AL

NATURE OF PROCEEDINGS: MOTION – ATTORNEY’S FEES

RULING

This is the third motion of Plaintiff Maricopa Meadows Homeowners Association for an award of attorneys’ fees and costs in connection with enforcement of a judgment. Plaintiff has not demonstrated that the attorney time, some of which dates back to 2024, was necessary for enforcement of the judgment. The motion is therefore **DENIED**.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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